

Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by May 22, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for May 13, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

20. 9:01 AM CASE NUMBER: C24-00366

CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO AMENDED REQUEST FOR ADMISSION, SET ONE**

FILED BY: DRILL TECH DRILLING & SHORING, INC.

TENTATIVE RULING:

See Line 19.

21. 9:01 AM CASE NUMBER: C24-00366

CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO FORM INTERROGATORIES, SET TWO**

FILED BY: DRILL TECH DRILLING & SHORING, INC.

TENTATIVE RULING:

See Line 19.

22. 9:01 AM CASE NUMBER: C24-00366
CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO AMENDED REQUESTS FOR ADMISSION, SET ONE
FILED BY: DRILL TECH DRILLING & SHORING, INC.
TENTATIVE RULING:
See Line 19.

Law & Motion
Add On

23. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
*HEARING ON MOTION IN RE: LEAVE TO FILED AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Drew Malm's ("Plaintiff") Motion for Leave of Court to file a Third Amended Complaint ("TAC") pursuant to Code Civ. Proc., § 473(a)(1), so that it may add a cause of action for the Breach of Covenant and Fair Dealing. Defendant filed this motion on January 12, 2026. The Motion is opposed by all named Defendants.

The Court is inclined to grant Plaintiff's motion but is unable to at this time due to the procedural defects outlined below. As explained below, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court's ruling. The Parties are ordered to appear to discuss dates for continuing the motion.**

Procedural Posture

There is a Motion for Summary Judgment/Adjudication brought by all named Defendants to be heard on this same calendar.

A trial date has not been set.

Legal Standard

It is well-established under California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior*